

Doctrine and Rule of Lenity are not implicated due to the clear language of Section 95465 and 95472 and the inapplicability of Section 95469(a).

Ruling

For the reasons discussed above, the Court **DENIES** Defendant's motion to strike.

18. 9:00 AM CASE NUMBER: MSC21-00513

CASE NAME: STANDEFER VS SIERRA-AT-TAHOE

***HEARING ON MOTION IN RE: COMPLIANCE HEARING (SET BY THE COURTROOM)**

FILED BY:

TENTATIVE RULING:

Summary

Upon review of Plaintiff's Compliance Statement filed on April 23, 2026, the Court finds that the Parties complied with the Final Order Approving Settlement filed on September 10, 2025. The Court hereby orders the release of the remaining 5% in attorney's fees to Plaintiff's counsel. Plaintiff's counsel shall prepare and e-file a conforming order no later than five (5) days from the date of this hearing. No appearance is required at the May 6, 2026 hearing.

19. 9:00 AM CASE NUMBER: MSC21-01757

CASE NAME: MARSHA TILLER VS U.S. BANK

***HEARING ON MOTION IN RE: JUDGMENT ON THE PLEADINGS**

FILED BY: VALUATION ONE INC A CALIFORNIA CORPORATION

TENTATIVE RULING:

This hearing was vacated by the moving party. No appearance is required on May 6, 2026.

20. 9:00 AM CASE NUMBER: PS25-1449

CASE NAME: SCOTT JACOBY VS. STEVEN CHAN

***HEARING ON MOTION IN RE: MOTION TO DISMISS THE CASE FOR NON-PAYMENT OF REAL PROPERTY PURCHASE OF DEFENDANTS' SENIORS RETIRENT RESIDENCE**

FILED BY: JACOBY, SCOTT

TENTATIVE RULING:

The Parties and counsel are ordered to appear in person or remotely to provide the court with a status of the proceedings.

21. 9:00 AM CASE NUMBER: PS25-1449

CASE NAME: SCOTT JACOBY VS. STEVEN CHAN

***HEARING ON MOTION IN RE: NOTICE OF MTN AND MTN TO DISMISS THE CASE FOR NON-PAYMENT OF REAL PROPERTY PURCHASE OF DEFENDANTS SENIOR RETIREMENT RESIDENCE; DECLARATION IN SUPPORT OF MTN**

FILED BY: CHAN, STEVEN L.

TENTATIVE RULING:

The Parties and counsel are ordered to appear in person or remotely to provide the court with a status of the proceedings.